

The Sugar (Restrictions on Movement) Order, 1979

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The Sugar (Restrictions on Movement) Order, 1979

UNION OF INDIA

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The Sugar (Restrictions on Movement) Order, 1979

Rule THE-SUGAR-RESTRICTIONS-ON-MOVEMENT-ORDER-1979 of 1979

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The Sugar (Restrictions on Movement) Order, 1979

Published in Gazette of India, (Extraordinary), Part 2, Section 3(1), dated the 17th December 1979, page 1456, vide Notification No. G.S.R. 701 (E)/Ess./Com./Sugar, dated the 17th December, 1979

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In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955 (10 of 1955

), and Clause 6 of the Sugar (Control) Order, 1966, the Central Government hereby makes the following Order, namely:

1.

Short title and commencement.

(1)

This Order may be called the Sugar (Restrictions on Movement) Order, 1979.

(2)

It shall come into force at once.

2.

Restrictions on transport of certain sugar.

- No person shall transport or offer or accept for transport, whether by road, rail or water, any sugar produced by vacuum pan process from one State to another State except under and in accordance with a permit issued in this behalf by the Central Government or the Chief Director (Sugar) or by the Government of State from which sugar is to be taken out or an officer authorised by the Government of that State:

Provided that nothing in this Order shall apply to the transport of sugar,-

(i)

by a vacuum pan sugar factory for sale in pursuance of a direction issued to it under-

(a)

Clause 2(1) of Levy Sugar Supply (Control) Order, 1979; or

(b)

Clause 5 of the Sugar (Control) Order, 1966;

(ii)

by a recognised dealer in one State from a vacuum pan sugar factory in another State; or

(iii)

to Bhutan by a nominee of the Government of Bhutan;

(iv)

on Government account; or

(v)

by the Food Corporation of India; or

(vi)

under and in accordance with the military credit notes; or

(vii)

forming part of ships' stores intended for bona fide consumption during voyage; or

(viii)

apportioned to the owner of a factory under Section 5 of the Sugar Export Promotion Act, 1958 (30 of 1958), either through or on behalf of, or by, the Indian Sugar Industry Export Corporation Limited.

Explanation. - For the purpose of Clause (ii) if the transport of sugar is covered by a gate pass issued under the Central Excise Rules, 1944, it will be treated as transport from vacuum pan sugar factory.

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